

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
AUGUST 05, 2026
8:30 a.m.

1. ANDREW EAMES V. KATIE ROGERS

SFL20210104

This matter is before the court for a five-year dismissal hearing under Code of Civil Procedure section 583.310, which provides, “[a]n action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) The action was filed on July 22, 2021.

It does not appear that notice of this five-year dismissal was served upon plaintiff for this hearing date and location. (Code Civ. Proc., § 583.360, subd. (a).) Therefore, the court, on its own motion, continues the hearing to 8:30 a.m., Wednesday, September 09, 2026, in Department 12 and directs the court clerk to serve notice of the continued hearing upon Plaintiff.

TENTATIVE RULING #1: THE COURT, ON ITS OWN MOTION, CONTINUES THE FIVE-YEAR DISMISSAL HEARING TO 8:30 A.M., WEDNESDAY, SEPTEMBER 09, 2026, IN DEPARTMENT 12 AND DIRECTS THE COURT CLERK TO SERVE NOTICE OF THE CONTINUED HEARING UPON THE PLAINTIFF.